

failure to timely seek entry of default and failure to timely prosecute. The Court notes that default was entered against the only named Defendant on December 12, 2025. Plaintiff was required to obtain a default judgment within 45 days of entry of default. CRC 3.110(h). The OSC issued for failure to timely seek entry of default, not failure to timely obtain a default judgment. Due to the typographical error, the OSC cannot be sustained. The OSC that issued on April 13, 2026 is **DISCHARGED**. The Court directs the clerk to issue an OSC Re: Sanctions to Plaintiff and Counsel for failure to timely obtain a default judgment as required by CRC 3.110(h) and failure to timely prosecute. Hearing on the OSC will be on **Monday, August 3, 2026 at 8:30 a.m. in Department 63.** The Court notes that while Plaintiff has sought a default judgment twice, in both instances the proposed judgment was returned for errors made by Plaintiff. Plaintiff is **ORDERED** to obtain a default judgment by the next hearing date.

JPMORGAN CHASE BANK, N.A. VS. ABRAHAM

CASE NUMBER: 25CVG-01939

Tentative Ruling on Motion for Order that Matters in Requests for Admission of Truth of Facts be Deemed Admitted: Plaintiff JPMorgan Chase Bank, N.A. seeks an order deeming the truth of the matters specified in Plaintiff's Requests for Admission, Set One to be admitted by Defendant Molly A. Abraham. Despite being timely served, Defendant not file an Opposition.

When a party fails to respond to Requests for Admission, the requesting party may move for an order deeming the genuineness of documents and the truth of matters specified in the requests admitted. CCP § 2033.280(b). Failure to respond also waives any objections to the discovery propounded. CCP § 2033.280(a). Plaintiff's moving papers sufficiently demonstrate that Defendant has failed to respond to Request for Admissions, Set One within the required time frame. Unlike a motion to compel *further* responses, a motion to compel responses when no responses have been provided does not require the propounding party to demonstrate good cause or that it satisfied a meet-and-confer requirement. *Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants* (2007) 148 Cal. App. 4th 390.

Monetary sanctions are mandatory per CCP § 2033.280(c), however, Plaintiff did not seek monetary sanctions and provided no evidence regarding attorney's fees or other costs associated with bringing the motion. Sanctions should only be imposed for "reasonable" expenses. CCP § 2033.030. The Court does not have information upon which to make a finding that any amount of sanctions were for reasonable expenses and will not impose sanctions.

The motion is **GRANTED**. Defendant is deemed to have admitted as true each of the items contained in Plaintiff's Request for Admissions, Set One. Objections are waived. Plaintiff provided a proposed Order that will be executed by the Court. The Court confirms the trial date of November 23, 2026.

MCCLOSKEY VS. CITY OF REDDING

CASE NUMBER: 26CV-0209559

Tentative Ruling on Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance: Petitioner Allen Donald McCloskey filed an Amended Petition for Order Relieving Petitioner from Provisions of Gov. Code § 954.4 (Gov. Code § 946.6) and for Injunctive Relief Abating Public and Private Nuisance on April 13, 2026. The Amended Petition is opposed by Respondent City of Redding.

As a preliminary matter, while Petitioner has added "Injunctive Relief Abating Public and Private Nuisance" when filing the Amended Petition, this is not proper. This case was opened as a petition for relief from the requirement that Petitioner file a government tort claim prior to filing an action against a government entity. Should Petitioner intend to move forward with any claim against Respondent, or any other government entity, Petitioner would need to file a complaint under a separate case. This tentative ruling addresses only the merits of